AI Disclosure in Human Subjects Research

AI use in research	IRB	Participants / Consent	Publication
1. AI interacts directly with participants (chatbots, interviews)	Yes	Yes	Yes
2. AI influences participant experiences or decisions (recommendations, feedback)	Yes	Generally yes*	Yes
3. AI processes identifiable or sensitive data (interviews, PII)	Yes	When relevant to consent and confidentiality	If relevant to methods
4. AI changes research procedures or introduces risks (new tasks, tools)	Yes	If consent information is affected	If relevant to methods
5. AI assists with data analysis (coding, summarizing, statistics)	When relevant to protocol or data protections	If privacy or consent is affected	Yes
6. AI contributes to findings or interpretations (theme generation, pattern identification)	When relevant to methodology	Usually no	Yes
7. AI generates substantive manuscript content (drafting, revising, figures)	Usually no	No	Yes

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Sample Informed Consent Language

Use and adapt the following examples to reflect the actual technology, data practices, and IRB-approved procedures.

Example A: AI-assisted transcription

With your permission, we will audio-record your interview and use [name of AI transcription tool] to convert the recording into written text. The transcript will be reviewed by the research team for accuracy. Recordings and transcripts will be stored in [approved storage location] and accessible to [authorized individuals]. [Explain whether the audio or transcript is transferred to an external provider, how long it is retained, and when it will be deleted.]

Example B: AI-assisted analysis of interviews or survey response

The research team plans to use artificial intelligence to help organize and identify patterns in interview transcripts or survey responses. The AI system will assist researchers in identifying potential themes, but researchers will review and interpret the results. [Explain whether identifiable information will be removed before processing and whether any information will be sent to an external service.]

Example C: Direct participant interaction with AI

As part of this study, you will interact with an artificial intelligence system called [tool name]. The system will [describe the interaction, such as asking questions, providing responses, or offering recommendations]. Some responses are generated automatically and may be inaccurate or incomplete. [Describe what interaction information will be recorded, who can access it, and how it will be stored.] Participation is voluntary.

Example D: Optional consent for AI processing

With your permission, we would like to use [AI tool] to process [specific research information] for [purpose]. [Describe whether information is identifiable and whether it leaves institutional systems.]

Please select one:

- I agree to the AI processing described above.
- I do not agree to the AI processing described above.

[Explain whether participants who decline may still participate and what alternative processing method will be used.]

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Example E: No AI use for participant data

The research team will not use artificial intelligence systems to collect, transcribe, analyze, or process your identifiable research information. Research data will be handled by authorized members of the research team using approved institutional systems and research procedures.

Consent language must match actual tool settings and contractual protections. Do not promise that data will never be retained, transferred, or used for training unless those claims have been verified.

Data Management and Privacy Checklist

Researcher Question	Check
Have I identified whether my data include FERPA-protected education records?	
Have I identified whether HIPAA, GDPR, state laws, or international privacy laws apply?	
Have I determined whether my data contain direct or indirect identifiers?	
Have I identified sensitive information that could cause harm if disclosed?	
Have I classified my data as Level 1, 2, or 3?	

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Do I know where my AI tool stores and processes uploaded information?	
Do I know whether information is transferred outside my university?	
Have I verified the provider's model-training, retention, logging, and deletion policies?	
Have I confirmed that the AI environment is approved for the relevant data?	
Have I determined whether institutional approval, consent, IRB review, or legal agreements are required?	
Have I restricted access to authorized members of the research team?	
Have I established secure storage, backup, retention, and deletion procedures?	
Have I documented how AI tools will be used and how outputs will be reviewed?	
Have I consulted a Data Services Librarian about my research data management plan?	

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Data Storage and Management Checklist

Before collecting research data:
☐ I know what types of data I will collect.
☐ I have determined whether the data are public, confidential, identifiable, or highly sensitive.
☐ I have identified any applicable privacy laws, including FERPA, HIPAA, GDPR, or other national or state requirements.
☐ I know whether participants can be identified directly or indirectly.
☐ I have a written plan for storing, managing, sharing, and deleting research data.
☐ I have determined which research team members need access.

Selecting AI Tools:
☐ I know which AI tools will be used and why.
☐ I have checked whether the tools are approved for my research data.
☐ I know whether data will remain on university servers or be transmitted to external providers.
☐ I have determined whether the provider retains prompts, recordings, transcripts, or uploaded files.
☐ I have checked whether the provider uses submitted data to train AI models.
☐ I know whether the provider offers permanent deletion and what limitations apply.
☐ I have checked whether AI features are automatically enabled in transcription, recording, survey, or meeting software.

Secure Storage and Access:
☐ Research data are stored in an approved institutional location.
☐ Identifiable information is stored separately from de-identified research data whenever appropriate.
☐ Data are encrypted in storage and during transmission where required.
☐ Access is limited to authorized research team members.
☐ Passwords, multifactor authentication, and appropriate security controls are used.
☐ I have verified whether cloud synchronization or automatic backups transfer data to additional services.
☐ I have established how long research data will be retained.
☐ I have established secure deletion procedures, including for vendor-held copies.

Data Processing and Research Integrity: ☐ I have tested AI workflows using fictional or appropriately generated synthetic data when feasible.
☐ I have considered whether synthetic data could reproduce identifying details from real records.
☐ I have checked AI outputs for errors, omissions, hallucinations, and bias.

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☐ I have documented the tools, model versions, relevant prompts, and processing methods.
☐ I have established procedures for human review of AI-generated results.
☐ I have determined what information may be shared, archived, or published.

Identify Your Research Data Risk Level:

Check the category that best describes the most sensitive data in your project. Level 1: Low Risk — Public or Non-Sensitive Data
☐ Public datasets and published research.
☐ Fictional or appropriately generated synthetic data.
☐ Fully anonymized data approved for public use.
☐ No identifiable or confidential participant information.

AI use: Approved tools may generally be appropriate, subject to institutional policies, licensing, and research requirements. Level 2: Medium Risk — Confidential or Limited-Access Data
☐ Confidential interviews or transcripts.
☐ Coded or pseudonymized participant records.
☐ Identifiable student information or restricted educational records.
☐ Research involving indirect identifiers or limited-access datasets.

AI use: Requires appropriate institutional authorization, access controls, and review of privacy obligations. Removing names alone does not necessarily make data anonymous.
Level 3: High Risk — Highly Sensitive or Restricted Data
☐ Medical, mental health, counseling, or clinical records.
☐ Trauma, sexual assault, substance use, or other highly sensitive interviews.
☐ Detailed identifiable records that could expose participants to serious harm if disclosed.
☐ Data subject to restrictive legal agreements or heightened confidentiality requirements.

AI use: Requires specific institutional approval and potentially legal agreements, additional security controls, and IRB review. Do not upload these data to external AI tools without explicit authorization.

Important: Risk classifications are practical guidance, not automatic legal determinations or permission to use particular tools.

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Synthetic Data Checklist

Synthetic data can be useful for learning, testing, and developing AI research workflows without initially exposing actual participants' information.

☐ Could I test my methods using fictional data before collecting or importing real participant records?
☐ Could synthetic data help test prompts, statistical analysis, qualitative coding, or visualizations?
☐ Are the synthetic records 100% fictional rather than lightly modified participant records?
☐ Have I checked for unrealistic patterns, bias, and missing perspectives?
☐ Have I documented how the synthetic data were generated?
☐ Have I clearly distinguished synthetic results from findings about actual participants?
☐ If I transition to real human subjects data, have I reassessed IRB requirements, consent, and data security?

A study using entirely fictional data ordinarily does not constitute human subjects research under the federal definition. However, generating data from real participants' records or adding actual participants later can change the review and privacy requirements.

Where to Get Help

Resource	How They Can Help
Data Services Librarian	Data management plans, documentation, file organization, data lifecycle, de-identification strategies, reproducibility, sharing, archiving, and research workflows, and testing research methods using synthetic data.
Institutional Review Board (IRB)	Human subjects' protections, informed consent, AI disclosure, research procedures, participant risks, and protocol changes.

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Information Technology / Academic Technology	Approved technology platforms, AI configuration, cybersecurity, secure data storage, access controls, third-party integrations, and vendor processing.
Data Governance / Legal	Privacy obligations, FERPA, HIPAA, GDPR and other applicable privacy laws, restricted information, international data protection requirements, and necessary legal agreements.

Glossary

FERPA-Protected Data (Student Education Records)
FERPA (Family Educational Rights and Privacy Act) is a U.S. federal law that protects the privacy of students' education records at educational institutions receiving applicable federal funding.
FERPA-protected data generally include records directly related to an identifiable student that are maintained by an educational institution or a party acting on its behalf.

Examples include:

- Grades, GPA, transcripts, and academic performance
- Course enrollment, attendance, and academic standing
- Student identification numbers and other identifying information
- Financial aid and certain student financial records
- Student disciplinary records
- Certain student advising, disability-related, or counseling records, depending on how they are maintained and applicable exceptions

Before entering or uploading student records, research data, or other institutional information into an AI tool, researchers must determine the data's classification level under your university's policy and confirm that the tool is approved for that level of data.

Most FERPA-protected student information is classified as Level 2 data, which may be used with institutionally approved AI tools, such as Gemini, when those tools are authorized for that data classification and use. However, not all FERPA-protected information is classified as Level 2, and some student records or sensitive information may require additional protections or restrictions.

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Privacy Laws and Regulations
Privacy laws are legal requirements governing how organizations collect, use, store, share, protect, and sometimes delete personal information. These laws may vary depending on the type of information, research setting, participant location, and organizations involved. Consult with IRB.
AI consideration: Using an AI service may involve transferring information to external vendors or servers in another jurisdiction. Researchers should determine which laws apply before transferring identifiable or restricted information.

Sensitive Research Data
Sensitive data are information that could cause harm, embarrassment, discrimination, financial loss, or other adverse consequences if disclosed, misused, or linked to identifiable individuals.
Sensitive information may be protected by law, institutional policy, contractual agreements, ethical obligations, or the terms of participant consent.

Examples include:
- Medical diagnoses, treatment records, and mental health information
- Trauma, sexual assault, or abuse experiences
- Substance use and highly personal behavioral information
- Sexual orientation, religious beliefs, and political affiliations
- Financial information and government identification numbers
- Immigration status and legal circumstances
- Biometric or genetic information
- Confidential interviews containing potentially identifying personal experiences
- Data concerning vulnerable populations or topics where disclosure could create significant risks

AI consideration: Sensitive research data generally require heightened security and careful review before AI processing, even when names have been removed. Researchers should obtain necessary institutional authorization and ensure that AI providers meet applicable confidentiality and security requirements.

Personally Identifiable Information (PII)
PII is information that can identify a person, either directly or when combined with other information.

Examples include:
- Names
- Addresses
- student ID numbers
- birth dates

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- photographs
- voice recordings
- Combinations of demographic details that make an individual recognizable.

NOTE: Removing names does not necessarily make research data anonymous.

Confidential, De-identified, and Anonymous Data

Confidential data: Information that researchers may link to an individual but have agreed to protect from unauthorized disclosure.

De-identified data: Data from which identifying information has been removed or modified to reduce the likelihood of identification. Re-identification may still be possible.

Anonymous data: Data that cannot reasonably be linked to an individual using available information. Stronger safeguards may still be needed for unusual or detailed records.

Key distinction: FERPA, HIPAA, and GDPR are legal frameworks with defined scopes. Sensitive data is a broader research ethics and data protection category. Information can be sensitive even when no particular privacy law applies.

For researchers: Classify your data before selecting an AI tool. Consult Data Services Librarians for data management planning, and institutional IT, Data Governance, Legal, or the IRB for questions about security, legal requirements, and participant protections.

Transcription Tools

Transcription Tool	Uses AI?	Can AI Be Turned Off?	Notes for Human-Subjects Research
Otter.ai	Yes	No for transcription	Cloud-based AI transcription; some generative features can be disabled.
Rev	Yes	Human transcription available	Confirm whether human orders involve AI processing.

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TranscribeMe	Yes	Unclear	Combines AI and human transcription.
GoTranscript	Yes, optional	Human service available	Confirm whether AI is excluded from human transcription.
Happy Scribe	Yes	Human service available	Offers AI and human transcription.
Sonix	Yes	No	Cloud-based AI transcription.
Trint	Yes	No	Cloud-based AI transcription.
Descript	Yes	Partially	AI features can be avoided, but automatic transcription uses AI.
Fireflies.ai	Yes	No for transcription	AI transcription, summaries, and meeting notes.
Zoom	Yes	Yes	Automated transcription and AI Companion can be disabled.

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Microsoft Teams	Yes	Yes	Copilot and transcription settings can be controlled.
Google Meet	Yes	Yes	Gemini features and automated transcription can be separately controlled.
Webex	Yes	Yes	AI assistant and transcription settings vary.
MAXQDA	Optional	Yes	Supports manual transcription without AI.
NVivo	Optional	Yes	Manual transcription can be used instead of AI services.
ATLAS.ti	Optional	Yes	Manual transcripts can be imported without using AI.
InqScribe	Optional	Yes	Supports manual transcription without AI.
Express Scribe	No, for manual transcription	Yes	Manual transcription with playback controls.
oTranscribe	No	Yes	Manual transcription.
ELAN	No, for manual annotation	Yes	Manual audio/video transcription and annotation.

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Transana	No AI required	Yes	Manual transcription and qualitative analysis.
noScribe	Yes	No for automatic transcription	AI transcription runs locally without cloud upload.
Whisper (local)	Yes	No for automatic transcription	AI transcription can run offline.
aTrain	Yes	No for automatic transcription	Local AI transcription.
MacWhisper	Yes	No for automatic transcription	Local AI transcription; cloud features may be optional.

IRB Note: Turning off generative AI does not necessarily turn off AI transcription.
Researchers should verify whether participant recordings are uploaded to external servers, retained by vendors, or used for AI model training. Human transcription services may also use AI during processing.

Tool capabilities and settings can vary by version, subscription, and institutional configuration.

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